



CHAPTER lvii.

An Act to empower the mayor aldermen and burgesses of the borough of West Hartlepool to construct a tramroad a tramway and a street work and to provide and work omnibuses within and beyond the borough and for other purposes.

A.D. 1919.

[15th August 1919.]

WHEREAS the mayor aldermen and burgesses of the borough of West Hartlepool (in this Act called "the Corporation") are the owners of tramways and light railways within the borough and it is expedient to empower the Corporation to construct the tramroad and the additional tramway and the street work in connexion therewith described or referred to in this Act and to confer further powers upon the Corporation with regard to their tramway and light railway undertakings:

And whereas it is expedient to authorise the Corporation to provide and work omnibuses within and beyond the borough and to confer upon the Corporation all necessary powers with regard thereto:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

For the purchase of land for and the construction	£
of the tramroad and tramway authorised by	
this Act	37,363
[Price 3s. Net.]	1

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For the provision of the electrical equipment and the construction of the other works necessary for the tramroad and tramway authorised by this Act - - - - -	£ 5,910
For the provision of omnibuses - - - - -	7,000
For the purchase of land for and the construction of the street work authorised by this Act -	3,180

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Durham which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty, that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the West Hartlepool Corporation Act 1919.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows (that is to say):—

Part I. Preliminary.

Part II. Lands.

Part III. Tramroad Tramways and Omnibuses.

Part IV. Street Work.

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Part V. Financial and Miscellaneous Provisions.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

Incorpora
tion of
Acts.

(1) The Lands Clauses Acts with the following exceptions and modifications:—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section;

(c) All claims for compensation made upon the Corporation under this Act or any Act incorporated herewith shall if the person claiming has no greater interest in the land in respect of which compensation is claimed than as tenant from year to year or as a leaseholder for any term of which not more than eighteen months remain unexpired at the time at which the claim is made be determined in manner provided by section 121 of the Lands Clauses Consolidation Act 1845;

(d) Any question of disputed compensation under this Act or any Act incorporated herewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Corporation and the person claiming the compensation or in default of such agreement appointed by the Board of Trade on the application of either party:

(2) Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) Part II. and Part III. of the Tramways Act 1870 Provided that—

(a) The words in section 19 of that Act “but
“nothing in this Act contained shall authorise any
“local authority to place or run carriages upon

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“such tramway and to demand and take tolls
“and charges in respect of the use of such
“carriages” shall not apply to the Corporation;

(b) So much of section 46 as authorises a local authority (not being the promoters) to make regulations shall not apply to the tramroad authorised by this Act:

(3) The provisions of the Railways Clauses Consolidation Act 1845 Provided that for the purpose of section 78 of the said Act the prescribed distance shall be two hundred yards.

Interpre-
tation.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1875 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

And in this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of West Hartlepool;

“The borough” means the borough of West Hartlepool;

“The council” means the council of the borough;

“The mayor” “the town clerk” “the treasurer” “the borough fund” “the borough rate” “the improvement fund” and “the improvement rate” mean respectively the mayor the town clerk the treasurer the borough fund the borough rate the improvement fund and the improvement rate of the borough;

“Omnibus” means any stage carriage other than a tramcar moved by animal power or by mechanical power including in that expression steam electrical and every other motive power not being animal power;

“The tribunal” means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust

money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation; A.D. 1919.

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any provisional order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertaking or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation;

“The Order of 1912” means the West Hartlepool Corporation Tramways Order 1912 confirmed by the Tramways Orders Confirmation Act 1912.

PART II.

LANDS.

5. Subject to the provisions of this Act the Corporation may enter upon take and use for and in connexion with the purposes of this Act and (in the case of the making widening or improving of any street or road) for providing space for the erection of buildings adjoining or near to such street or road all or any part of the lands delineated on the deposited plans and described in the deposited book of reference Provided Acquisition of lands.

A.D. 1919. that nothing in this Act contained shall authorise the Corporation to enter upon take or use any of the lands shown on the deposited plans and belonging to or vested in or under the jurisdiction of the Tees Conservancy Commissioners without their previous consent in writing.

Correction
of errors in
deposited
plans and
book of
reference.

6. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Durham for the correction thereof and if it appears to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and shall be kept by such clerk of the peace with the other documents to which the same relates and thereupon the deposited plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Owners may
be required
to sell parts
only of
certain pro-
perties.

7.—(1) Whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (a) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter in this section included in the term "the owner"

and the said properties are hereinafter referred to as "the scheduled properties": A.D. 1919.

- (b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed:
- (d) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (e) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be

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severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:

(f) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:

(g) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any premises.

Compensa-
tion in case

8. For the purposes of determining any question of disputed compensation payable in respect of lands taken under

the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the thirty-first day of March nineteen hundred and nineteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

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of recently
acquired
interest.

9.—(1) The tribunal shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time has been delivered and that the Corporation have been prejudiced thereby the tribunal shall have power to decide whether or not the claimant's costs or any part thereof shall be borne by the claimant.

Costs of
arbitration
&c. in cer-
tain cases.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

10. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of four years from the passing of this Act.

Period for
compulsory
purchase of
lands.

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Purchase of
lands by
agreement.

11.—(1) In addition to any other lands acquired by the Corporation in pursuance of this Act they may by agreement purchase take on lease or acquire and may hold for the purposes of this Act (including the construction of a public carriage road eighty feet in width along the route of Tramroad No. 2 authorised by this Act) such further lands as may be necessary and they may on such lands erect or construct and maintain such public carriage road and hold depôts yards offices buildings sidings works and other conveniences.

(2) Nothing in this Act shall exonerate the Corporation from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased or used by them under this section.

Persons
under dis-
ability may
grant ease-
ments &c.

12. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Retention
and disposal
of lands.

13. Notwithstanding anything in any Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any Act incorporated with this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of
sale of sur-
plus lands.

14.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as

they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Local Government Board.

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(2) Provided that—

(a) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by or under this Act for the purpose of such purchase:

(b) The borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

PART III.

TRAMROAD TRAMWAYS AND OMNIBUSES.

15.—(1) The Corporation may subject to the provisions of this Act construct maintain use and work in accordance with the deposited plans and sections the tramroad and tramway hereinafter described with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places posts poles brackets wires stables carriage-houses engine-houses sheds buildings works and conveniences connected therewith and for the purpose of working the said tramroad may supply electrical energy outside the borough:

Construc-
tion of
tramroad
and tram-
way.

Provided that nothing in this Part of this Act or in any Act wholly or in part incorporated therewith shall authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 (Power of undertakers to alter position of wires and pipes) of the former Act apply except in accordance with and subject to the provisions of that section.

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(2) The works hereinbefore referred to and authorised by this section will be situate in the parishes of Seaton Carew and West Hartlepool in the borough and in the parish of Seaton and township of Greatham in the county of Durham and are—

Tramroad No. 2 (Double line 2 miles 1 furlong 1 chain in length) commencing in Windermere Road by a junction with Tramway No. 1 hereinafter described at a point opposite the southern frontage line of that road and terminating at a point 2 furlongs 3 chains measured in a northerly direction from the centre of the bridge carrying the road of the Tees Conservancy Commissioners across lands belonging to the Earl of Eldon:

Tramway No. 1 (Double line 2 furlongs in length) commencing by a junction with the existing tramway in Stockton Road at a point 3·2 chains measured in a northerly direction from the intersection of the centre lines of Sydenham Road and Stockton Road and terminating in Windermere Road at a point opposite the southern frontage line of that road.

(3) Provided that Tramway No. 1 shall not be constructed until Brenda Street has been widened so that a space not less than nine feet six inches will intervene between the outside of the footpath on each side of the road and the nearest rail of the tramway.

For protec-
tion of
North
Eastern
Railway
Company.

16. For the protection of the North Eastern Railway Company (in this section called “the company”) the following provisions shall unless otherwise agreed between the Corporation and the company be observed and have effect (that is to say):—

(1) Notwithstanding anything contained in the section of this Act of which the marginal note is “Power to deviate” the Corporation shall not in constructing the bridge carrying Tramroad No. 2 over the company’s Stockton Hartlepool and Newcastle Railway deviate from the centre line thereof as shown on the deposited plans at the point where the said tramroad is shown to cross the company’s said railway:

(2) The said bridge shall be constructed and thereafter maintained under the direction and superintendence

and to the reasonable satisfaction of the engineer A.D. 1919.
of the company and in accordance with plans
drawings and specifications previously submitted to
and approved by him with a clear headway above
rail level of fifteen feet and with a clear span of
sixty feet measured at right angles to the direction
of the railway line:

- (3) The Corporation shall on demand pay to the company the reasonable expense of lighting and watching the works of the company during the construction or repair by the Corporation under this Act of the said bridge for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them:
- (4) The Corporation shall not in the execution maintenance or repair of the said bridge obstruct or interfere with the safe user of the company's railway or interrupt obstruct hinder or interfere with the traffic thereof:
- (5) The Corporation shall during the execution or repair of the said work execute all such temporary works as shall be reasonably necessary for the purpose of avoiding risk to the railway or interruption to the traffic thereon and they shall further pay and make good to the company all loss damages and expenses which the company shall sustain or be put to by reason of the construction maintenance repair and use of the said bridge:
- (6) The Corporation shall not without the consent in writing of the company take any property of the company but they may purchase and take and the company shall grant such right or easement over or upon any lands or works of the company delineated on the deposited plans as shall be necessary for the purposes of constructing maintaining and using Tramroad No. 2 and the Corporation shall not either temporarily or permanently enter upon use or interfere with any railway or property of the company save only as far as may be necessary for the purpose of constructing

A.D. 1919. and maintaining the said tramroad in accordance with the provisions of this Act:

(7) If having regard to the relative position of the works of the Corporation and the works of the company at any point where the tramroad will be constructed over the railway of the company it becomes advisable that the electric telegraphic telephonic or signal wires or apparatus of the company shall be altered the company may execute any works reasonably necessary for such alterations and the reasonable expense of executing such works shall be borne by the Corporation:

(8) Any difference arising between the Corporation and the company under this section shall be determined by an engineer to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers under the provisions of the Arbitration Act 1889.

For protection of Earl of Eldon.

17. If within two years after the passing of this Act the aerodrome on the lands of the Earl of Eldon has been removed the Corporation shall if required by the Earl of Eldon apply for the necessary statutory powers to enable them to deviate the part of Tramroad No. 2 by this Act authorised between the North Eastern Railway and the road of the Tees Conservancy Commissioners in such convenient position to the south of the line of the said tramroad shown upon the plans deposited in connexion with the Bill for this Act as may be agreed between the Earl of Eldon and the Corporation: and in default of agreement in such position as shall be determined by an engineer to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to the determination of the difference between the parties.

Period for completion of tramroad and tramway.

18. The tramroad and tramway authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers granted by this Act to the Corporation for executing such tramroad and tramway or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

19.—(1) In the construction of the works authorised by this Part of this Act the Corporation may deviate from the lines shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may also deviate from the levels shown on the deposited sections to any extent not exceeding five feet upwards or downwards. A.D. 1919.
Power to deviate.

(2) Provided that in the exercise of the powers of this section the Corporation shall not lay any rails along or across a road except in such manner that the uppermost surface of the rail shall be on a level with the surface of the road.

20. The powers and provisions with regard to tramways contained in the Order of 1912 shall apply to the tramroad and tramway authorised by this Act as if such tramroad and tramway had been Corporation tramways as defined in that Order: Application
of Order of
1912.

Provided that—

The following sections of that Order shall not apply to so much of the tramroad as shall not be constructed on roads (namely):—

Section 8 Plan of proposed mode of construction;

Section 10 Penalty for not maintaining rails and roads;

Section 11 Tramways to be kept on level of surface of road;

Section 12 Cross-overs to be constructed in certain cases;

Section 14 Temporary tramways may be made when necessary;

Section 15 Application of road materials excavated in construction of works;

Section 16 Shelters or waiting-rooms;

Section 19 Mechanical power works (paragraphs (B) and (C));

Section 20 Mechanical power works to be subject to Tramways Act 1870:

Provided further that notwithstanding anything contained in section 30 (Passengers' fares) of the Order of 1912 the Corporation may charge for any less distance than two miles not being less than half a mile a sum not exceeding two pence and notwithstanding anything contained in section 33 (Cheap fares

A.D. 1919. — for labouring classes) the Corporation shall not be bound in any case to charge under the provisions of that section a less sum than one penny.

Calculation
of maximum
fares rates
and charges.

21. For the purpose of calculating the maximum fares rates and charges to be charged on the tramways tramroad and light railways of the Corporation the same shall be deemed to be one undertaking.

Power to
require
intending
passengers
to wait in
lines or
queues.

22.—(1) For the better regulation of persons desiring to travel in the carriages on the Corporation's tramways tramroads and light railways the Corporation may erect and maintain barriers and posts at any stopping place or terminus and for that purpose may with the consent of the road authority use part of the highway and the Corporation may make byelaws requiring persons waiting to enter carriages at any stopping place or terminus upon any of their tramways tramroads and light railways to wait in lines or queues and to enter such carriages in the order in which they stood in such line or queue. Provided that no such barriers or posts shall be erected or maintained at any such stopping place or terminus so as to interfere with or render less convenient the access to or exit from any station or property belonging to the North Eastern Railway Company.

(2) Any byelaws made under this section shall be made subject and according to the provisions of section 46 (Byelaws by local authorities Promoters may make certain regulations) and section 47 (Penalties may be imposed in byelaws) of the Tramways Act 1870 and those provisions shall apply accordingly.

Power to
provide and
run omni-
buses.

23.—(1) The Corporation may provide and maintain (but shall not manufacture) and may run omnibuses within the borough and outside the borough along the following route:—

In the parish of Seaton and the township of Greatham from the southerly boundary of the borough along the road of the Tees Conservancy Commissioners between West Hartlepool and Port Clarence to the centre of the bridge carrying that road over Greatham Creek:

And (with the consent of the Board of Trade and the local authority of the district and the road authority of any road along the route) along any other route outside the borough and

may erect omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running and equipment of such omnibuses but the Corporation shall not create or permit any nuisance on any lands upon which they erect any such houses buildings or sheds. A.D. 1919.

(2) The Corporation may demand and take for the conveyance of passengers in any omnibuses run under the powers of this section the same fares and charges as they are for the time being authorised to demand and take for passengers travelling on the tramways of the Corporation and may also demand and take for the carriage of parcels not exceeding fifty-six pounds in weight the same rates and charges as they are for the time being authorised to demand and take for small packages of the same weight carried on the tramways.

(3) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon their omnibuses Provided that any such byelaw shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

(4) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(5) The provisions of section 48 (Power to local authority to license drivers conductors &c.) of the Tramways Act 1870 shall apply to the omnibuses of the Corporation as if such omnibuses were carriages used on tramways.

(6) For the purposes of this section the expression "road authority" with reference to any road bridge or level crossing owned maintained or repaired wholly or in part by a railway company shall mean such railway company.

24. For the further protection of the North Eastern Railway Company (in this section called "the company") the following provisions shall unless otherwise agreed between the Corporation and the company be observed and have effect (that is to say):— For further protection of North Eastern Railway Company.

(1)—(a) If under this Act the Corporation shall run omnibuses over any bridge belonging to or maintainable

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in whole or in part at the expense of the company and in consequence thereof such bridge shall require to be specially strengthened altered or repaired the company may at the expense of and after notice in writing to the Corporation execute all such works as may be requisite for that purpose:

(b) If any difference shall arise under this subsection between the Corporation and the company as to the necessity for strengthening altering or repairing any bridge in consequence of the running of such omnibuses over it or as to the reasonableness of the requirements of the company or as to the execution of any works provided for by this subsection the same shall be referred to arbitration:

(2)—(a) The Corporation shall pay to the company an annual sum equal to one penny and one farthing per car mile run by the omnibuses of the Corporation under the powers of this Act over any road (which term shall include a bridge and approaches thereto or level crossing) wholly repairable by the company towards the cost of the maintenance by the company of such road and where any road run over by such omnibuses is in part repairable by the company the Corporation shall pay to the company an annual sum equal to such proportion of one penny and one farthing per car mile run by the omnibuses of the Corporation as the part of the cost of repairing the road paid by the company bears to the whole cost of repairing the road:

(b) The Corporation shall keep statements for the purpose of this subsection showing in proper detail the mileage run by each omnibus of the Corporation on any such road and shall furnish copies of such statements annually to the company and the Corporation shall allow any person duly authorised by the company in that behalf at all reasonable times to inspect and take copies of all such statements and any accounts kept by the Corporation relating to the running of such omnibuses:

(c) In consideration of the payments to be made by the Corporation to the company under this subsection the

company shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of any such road by the omnibuses of the Corporation: A.D. 1919.

(d) Any difference at any time arising between the company and the Corporation as to the sum from time to time payable under the provisions of this subsection shall be settled by arbitration.

(3) Any question which under this section is to be settled by arbitration shall be referred to an arbitrator to be agreed upon between the company and the Corporation or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

25.—(1) From and after the transfer of the road of the Tees Conservancy Commissioners between West Hartlepool and Port Clarence to the county council of the county of Durham (hereinafter referred to as "the county council") the Corporation shall pay to the county council an annual sum equal to one penny and one farthing per car mile run by the omnibuses of the Corporation over such road towards the cost of the maintenance of such road. All sums of money payable to the county council under the provisions of this section shall be deemed to be a debt due to the county council and recoverable from the Corporation accordingly. For protection of Durham County Council.

(2) The Corporation shall keep statements for the purposes of this section showing in proper detail the mileage run by each omnibus on such road and shall furnish copies of such statements annually to the county council and the Corporation shall allow any person duly authorised by the county council in that behalf at all reasonable times to inspect and take copies of all such statements and any accounts kept by the Corporation relating to the running of all such omnibuses.

(3) In consideration of the payments to be made by the Corporation to the County Council under this section the county council shall not under section 23 of the Highways and Locomo-

A.D. 1919. tives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of such road by the omnibuses of the Corporation.

(4) Any dispute which may arise under this section between the Corporation and the county council shall be referred to a single arbitrator who in default of agreement shall be appointed by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to the reference.

Omnibuses
to form
part of
tramway
under-
taking.

26. The omnibus undertaking authorised by this Act shall be deemed to form part of the tramway undertaking of the Corporation. Provided that in the accounts of the Corporation relative to their tramway undertaking the income and expenditure upon and in connexion with omnibuses shall (so far as may be reasonably practicable) be distinguished from the income and expenditure upon or in connexion with the remainder of such undertaking.

Shelters or
waiting-
rooms.

27. The Corporation may erect and maintain within and with the consent of the local and road authorities beyond the borough sheds shelters or waiting-rooms and gangways for the accommodation of passengers on the tramroad and tramway and the omnibus routes by this Act authorised and may use for that purpose portions of the public streets or roads:

Provided that no sheds shelters or waiting-rooms and gangways shall be erected or maintained in any street or road so as to cause interference with or render less convenient the access to or exit from any station or depôt belonging to the North Eastern Railway Company.

Power to
reserve cars
for special
purposes.

28.—(1) Notwithstanding anything contained in any Act to the contrary the Corporation may on days on which racing takes place or on any other special occasion run and reserve carriages on any of the tramways tramroads and light railways of the Corporation and omnibuses on any of the omnibus routes for any special purpose which the Corporation may consider necessary or desirable provided that during the running of such special carriages or omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of carriages or omnibuses as the case may be.

(2) The Corporation may make byelaws and regulations for prohibiting the use of any such carriages or omnibuses by any persons other than those for whose conveyance the same are reserved and the provisions of the Tramways Act 1870 as to byelaws shall apply to any byelaws made under this section. A.D. 1919.

(3) The restrictions contained in this or any other Act of the Corporation as to rates or charges for passengers shall not extend to any special carriages run upon the tramways tramroads or light railways of the Corporation or omnibuses run upon the omnibus routes and in respect thereof the Corporation may demand and take such rates or charges as they shall think fit.

29. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the working of any of the tramways tramroads or light railways of the Corporation anything which is calculated to obstruct or interfere with the maintenance or working of such tramway tramroad or light railway or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any of the tramways tramroads or light railways of the Corporation shall be liable to a penalty not exceeding twenty pounds. Penalty for malicious damage.

30. Any property found in any tramcar or omnibus of the Corporation shall forthwith be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the revenue account of the tramway undertaking. Lost property.

31. The fares rates and charges by this Act authorised shall be paid to such persons and at such places upon or near to the tramroad or tramway or the omnibuses by this Act authorised as the case may be and in such manner and under such regulations as the Corporation may by notice to be annexed to the list of fares rates and charges appoint. Payment of fares rates and charges.

A.D. 1919.

Stopping
and starting
places.

32. The Corporation may appoint the stations and places from which the carriages on their tramways tramroads and light railways and their omnibuses shall start or at which they may stop for the purposes of taking up or setting down passengers and may make regulations for fixing the time during which such carriages and omnibuses shall be allowed to remain at any such place:

Provided always that the Corporation shall not appoint any such stations or places so as to interfere with or render less convenient the access to or exit from any station or depôt belonging to the North Eastern Railway Company.

Through
cars and
omnibuses.

33. The Corporation may run through cars along any of the routes of their tramways tramroads and light railways or any specified portion thereof and through omnibuses along any route and such cars and omnibuses shall be distinguished from other cars and omnibuses in such manner as may be directed by the Corporation and they may demand and take for every passenger by such cars and omnibuses a fare or charge not exceeding the maximum fare authorised for and in respect of the whole of such route or the whole of the portion thereof traversed by any such car or omnibus. Provided that the running of such through cars shall in no way curtail the ordinary service.

Power to
use trailer
and coupled
carriages.

34.—(1) The Corporation may with the consent of the Board of Trade provide (but shall not manufacture) maintain work and use trailer carriages and coupled carriages on their tramways tramroads and light railways on such routes and at such times as the Board of Trade may approve and for such periods and on such terms and conditions as may be expressed in such approval and the Board of Trade may revoke any such approval or alter the terms and conditions of any such approval.

(2) The trailer carriages and coupled carriages used by the Corporation under the provisions of this section shall be fitted with such brakes and safety appliances as the Board of Trade may approve and no trailer carriage or coupled carriage shall be used by the Corporation unless the design thereof has been approved by the Board of Trade.

(3) Except so far as the Board of Trade may otherwise allow the number of carriages or vehicles which may be used or run attached together shall not in any case exceed two.

35.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to the route of any of their tramways tramroads light railways or omnibuses signs or directions indicating the position of stopping-places for tramcars and omnibuses:

A.D. 1919.

Attachment
of signs
indicating
stopping-
places to
lamp-posts
&c.

Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

(4) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or other similar erection belonging to a railway company except with their consent in writing.

36.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

Lopping of
trees over-
hanging
highways.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within seven clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the town clerk and the court shall have power

A.D. 1919. to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

Removal of obstructions.

37. If any obstruction to the traffic on any of the tramways tramroads or light railways of the Corporation is caused by any vehicle breaking down or any load falling from a vehicle the person in charge of the vehicle shall forthwith remove the vehicle or load so as to prevent the continuance of the obstruction and if he fails to do so the Corporation may so remove the vehicle or load and may remove any other obstruction to such traffic and may provide and use all necessary plant and apparatus and take all necessary steps to remove any such obstruction and the Corporation shall in removing such obstruction conform to the reasonable requirements of the police.

Conveyance of mails.

38. The Corporation shall perform in respect of the omnibuses all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated.

Power to acquire patent rights.

39. For the purpose of using mechanical power the Corporation may acquire hold and exercise patent and other rights or licences relating to motive power or otherwise but not so as to acquire any exclusive right therein.

For protection of Tees Conservancy Commissioners.

40.—(1) Until the new road from Seaton Carew to Greatham Creek (including the bridges) constructed under the authority of the Tees Conservancy Act 1912 shall have been transferred to the county council of Durham or taken over by the local authority or local authorities having charge of public highways in the district or districts in which such road is situate the Corporation shall if and so long as they shall run omnibuses thereon and except so far as it may otherwise be agreed between the Corporation and the Tees Conservancy Commissioners pay in each half-year to the Tees Conservancy Commissioners an amount equivalent to so much of the cost of the maintenance and repair of the said road as shall be due to the running of the omnibuses of the Corporation which amount in default of agreement between the Corporation and the Tees Conservancy Commissioners shall be determined by arbitration under the Arbitration Act 1889 or

any statutory modification of that Act by a surveyor or engineer appointed by the Board of Trade on the application of either party. A.D. 1919.

(2) The Corporation shall not run omnibuses along any other route situate outside the borough and for the time being vested in the Tees Conservancy Commissioners without the consent in writing of such Commissioners first had and obtained.

(3) Any contribution paid to the Tees Conservancy Commissioners under this section shall be applied in discharge of the cost incurred by the Commissioners in maintaining and repairing the said road.

(4) Notwithstanding anything to the contrary in this Act contained the Corporation shall not erect any sheds shelters waiting-rooms gangways barriers or posts in nor attach any sign or direction to any lamp-post pole standard or other similar erection erected in any road constructed under the authority of the Tees Conservancy Act 1912 without the consent in writing of the Tees Conservancy Commissioners so long as such road remains vested in or under the jurisdiction of those Commissioners.

PART IV.

STREET WORK.

41. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street work hereinafter mentioned together with all necessary approaches junctions abutments embankments arches steps sewers drains culverts works and conveniences connected therewith or incidental thereto. Power to make street work.

The street work hereinbefore referred to and authorised by this section is—

Street Work No. 2. An extension and a widening of Brenda Street on the west side thereof to be situate wholly in the parish of West Hartlepool in the borough commencing by a junction with Stockton Road at the junction of that road with Sydenham Road and terminating at the junction of Brenda Street with Windermere Road.

42. In the construction of the works authorised by this Part of this Act the Corporation may deviate from the lines Limits of deviation.

A.D. 1919. thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards.

Subsidiary
works.

43.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connexion with the street work authorised by this Part of this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such work and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such work or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section.

(2) Provided that the Corporation shall not alter divert or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

Power to
alter steps
pipes areas
&c.

44. Within the limits of deviation shown on the deposited plans the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains and the pipes or wires for the purpose of conveying water electricity or gas to any house or other place and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 (Compensation in case of damage by local authority) of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

45.—(1) The Corporation during the execution of the powers of this Act may break up and also temporarily stop up divert and interfere with any street for the purpose of executing such powers and may for any reasonable time prevent all persons other than those bonâ fide going to or from any house in the street from passing along and using the same.

A.D. 1919.
—
Temporary
stoppage of
streets.

(2) The Corporation shall provide reasonable access for foot passengers bonâ fide going to or from any such house.

(3) The Corporation shall at all times during the execution of any such works maintain a reasonably sufficient access both for vehicular and pedestrian traffic to the stations and depôts of the North Eastern Railway Company.

PART V.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

46.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the respective revenue funds and rates mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as “the prescribed period”) mentioned in the fourth column thereof (namely):—

Power to
borrow.

1.	2.	3.	4.
Purpose.	Amount.	Charges.	Period.
(a) For the purchase of land for the tramroad authorised by this Act.	£ 900	The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate.	60 years from the date or dates of borrowing.
(b) For the construction of the tramroad and tramway authorised by this Act.	£ 36,463	The revenue of the tramway undertaking of the Corporation the borough fund and borough rate.	30 years from the date or dates of borrowing.

A.D. 1919.

1.	2.	3.	4.
Purpose.	Amount.	Charges.	Period.
(c) For the provision of the electrical equipment and the construction of the other works necessary for the tramroad and tramway authorised by this Act.	£ 5,910	The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate.	20 years from the date or dates of borrowing.
(d) For the provision of omnibuses.	7,000	The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate.	5 years from the date or dates of borrowing.
(e) For the purchase of land and easements for the street work authorised by this Act.	2,200	The improvement fund and improvement rate.	60 years from the date or dates of borrowing.
(f) For the construction of the said street work.	980	The improvement fund and improvement rate.	50 years from the date or dates of borrowing.
(g) For paying the costs charges and expenses of this Act.	The sum requisite	The borough fund and borough rate.	5 years from the passing of this Act.

(2)—(a) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of Part III. (Tramroad Tramways and Omnibuses) of this Act and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act other than purposes of that Part.

(b) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Board with whose consent it is borrowed.

(c) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Board with whose consent it is borrowed.

(3) The provisions of this section prescribing the revenue funds or rates which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by the section

of this Act of which the marginal note is "Power to use one form of mortgage for all purposes." A.D. 1919.

47. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Section 234
of Public
Health Act
1875 not to
apply.

48.—(1) The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others.

Mode of
raising
money.

(2) Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) of that Act.

49. Subject to the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

Provisions
of Public
Health Act
1875 as to
mortgages
to apply.

Section 236. Form of mortgage;

Section 237. Register of mortgages;

Section 238. Transfer of mortgages.

50. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments or by half-yearly payments to the sinking fund within six months from the date of borrowing.

Mode of
payment
off of
money bor-
rowed.

A.D., 1919.

Sinking
fund.

51.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal yearly or half-yearly sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Local Government Board may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be

derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation. A.D. 1919.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

A.D. 1919.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Appoint-
ment of
receiver.

52.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Application
of money
borrowed.

53. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Application
of revenue
of tramway
under-
taking.

54.—(1) In this section the expression “tramway undertaking” means the tramway undertaking authorised by the Order of 1912 and the tramway tramroad and omnibus undertaking authorised by this Act and the light railway undertaking authorised by the West Hartlepool Light Railways Order 1897 the West Hartlepool Light Railways (Deviation &c.) Order 1901 and the West Hartlepool Light Railways (Amendment) Order 1913.

(2) The Corporation shall apply all money received by them on account of revenue in respect of their tramway under-

taking in the manner and in the order following (that is to say) :— A.D. 1919.

First In payment of the working and establishment expenses and cost of maintenance of the undertaking (including the maintenance of so much of the roads in which the tramways tramroads and light railways are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870 and the payments required to be made under the provisions of this Act in respect of omnibuses towards the cost of the maintenance of roads):

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking:

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking:

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of the undertaking:

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to two-fifths of the aggregate capital expenditure for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the tramways tramroads or light railways of the Corporation or of the rolling stock and other works connected therewith and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve

A.D. 1919.

fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Corporation shall carry to the borough fund so much of any balance remaining in any year of the income of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(3) Any deficiency in the revenue of the tramway undertaking of the Corporation shall be made good out of the borough rate made next or next but one after such deficiency is ascertained.

(4) Section 14 (Provision for deficiency of income from undertaking) and section 15 (Application of revenue) of the West Hartlepool Light Railways (Amendment) Order 1913 are hereby repealed.

Power to
use one
form of
mortgage
for all pur-
poses.

55.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Second Schedule or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section

and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted. A.D. 1919.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a fine not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule or to the like effect.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured

A D. 1919. thereby and any transferee may in like manner transfer his rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a fine not exceeding twenty pounds.

Power to
use sinking
fund instead
of borrow-
ing.

56.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of—

(a) a loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(b) moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(a) withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(b) credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the

amount so credited shall be deemed to be principal A.D. 1919,
moneys discharged by application of the sinking
fund;

(c) debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and reborrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

57.—(1) The Corporation shall have power—

Power to
reborrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of

A.D. 1919. paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Power to
invest all
sinking
funds in
statutory
securities.

58. When under the provisions of any Act of Parliament or of any order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Return as
to sinking
fund.

59.—(1) The treasurer shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Corporation in pursuance of any statutory borrowing power and not raised by the issue of stock and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of the treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound

interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court. A.D. 1919.

(2) If it appears to the Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

60. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for a loan may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register. Corporation not to regard trusts.

61. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the borough fund or as the Corporation having regard to the nature of the expenditure shall deem just. Expenses of execution of Act.

A.D. 1919.

Power to
amend rates
to accord
with new
valuation
list.

62. The powers of section 221 (Rates may be amended) of the Public Health Act 1875 and of section 384 (Power to amend rates) of the West Hartlepool Extension and Improvement Act 1870 shall extend to enable the Corporation to amend any rate made by them in pursuance of such Acts or either of them so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate.

Power to
create acci-
dent fund.

63.—(1) The Corporation may if they think fit form a fund to be called the “accident fund” to provide for meeting claims upon them under the common law the Employers’ Liability Act 1880 the Workmen’s Compensation Act 1906 or any Act or Acts for the time being amending or extending those Acts or otherwise in respect of any accident occurring in the execution of any of their powers and such fund shall be formed by annually appropriating thereto such sums out of any of their revenues which are properly chargeable with such sums as they may from time to time deem expedient and such sums shall be invested at compound interest in or upon statutory securities and accumulated until the same shall amount to the sum of ten thousand pounds Provided that the Corporation may from time to time or at any time resort to that fund for any purpose mentioned in this section notwithstanding that the same shall not then have reached or shall have been reduced below the said sum of ten thousand pounds and if the said fund be reduced at any time it may in manner provided by this section be restored to the said amount.

(2) If at any time it should be necessary for making any payment for any compensation to which this section relates to borrow money the Corporation may with the sanction of the Local Government Board borrow the necessary sum on the security of the revenues of the Corporation which are properly chargeable therewith.

Scheme for
fixing
equated
periods and
consolidat-
ing loans.

64.—(1) The Corporation may at any time hereafter and from time to time make a scheme for prescribing one or more equated periods within which all or any loans contracted by them under statutory borrowing powers including the loans borrowed or taken over by the body formerly known as the West Hartlepool School Board the liability in respect of which was by the provisions of the Education Act 1902 transferred to the Corporation shall be discharged and such scheme may extend or vary

the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. A.D. 1919.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights or remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any corporation stock existing at that time except with the consent of such mortgagee or holder.

(4) The Corporation may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such moneys as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Corporation for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board shall sanction.

(5) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

65.—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Act 1906 or the School Teachers (Superannuation) Act 1918 grant a gratuity of any sum (not exceeding two years' pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in their service. Power to grant gratuities in certain cases.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

A.D. 1919.

(3) In and for the purposes of this section the expression "officers or servants" shall include any teacher who at the date of the passing of this Act is or shall thereafter be permanently and exclusively employed by the Corporation as the local education authority for the borough or permanently and exclusively employed in any public elementary school in the borough (whether provided by the Corporation as the local education authority or not so provided) or permanently and exclusively employed in any school college or hostel provided by the Corporation as the local education authority for the purposes of Part II. of the Education Act 1902.

Audit of
accounts.

66. The accounts of the receipts and expenditure of the Corporation under this Act shall be audited examined and published in like manner and with the same consequences as the other accounts of the Corporation are audited examined and published under the Municipal Corporations Act 1882.

Evidence of
appoint-
ments
authority
&c.

67. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Recovery of
penalties
&c.

68.—(1) Save as otherwise by this Act expressly provided all offences against this Act and all fines forfeitures penalties costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner.

(2) Provided that costs and expenses except such as are recoverable along with a fine shall not be recovered as penalties but may be recovered summarily as civil debts.

69. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

A.D. 1919.

Recovery of demands in county court.

70. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

Informations by whom to be laid.

71.—(1) All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed.

Powers of Act cumulative.

(2) Provided that no person shall incur more than one fine (other than a daily fine for a continuing offence) for the commission of the same offence.

72.—(1) Where any notice or demand under this Act or under any local Act provisional order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

Authentication and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act provisional order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

A.D. 1919.

Judges not
disqualified.

73. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Crown
rights.

74. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give).

Costs of Act.

75. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or out of money to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the foregoing Act. A.D. 1919.

THE FIRST SCHEDULE.

LIST OF PROPERTIES OF WHICH PART ONLY MAY BE TAKEN.

Parish.	Numbers on deposited Plans.
West Hartlepool (in the borough)	34 35 36 37

THE SECOND SCHEDULE.

FORM OF MORTGAGE.

BOROUGH OF WEST HARTLEPOOL.

By virtue of the West Hartlepool Corporation Act 1919 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of West Hartlepool (hereinafter referred to as "the Corporation") in consideration of the sum of pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee (his) executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee (his) executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of nineteen hundred and until payment of the principal sum such interest to be paid half-yearly on the day of

A.D. 1919. and the day of in each year
— And it is hereby agreed that the principal sum shall be repaid at the
Municipal Buildings in the said borough [(subject as hereinafter provided)
on the day of
nineteen hundred and] [by]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hands of the mayor and the town clerk of the borough for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this day of
nineteen hundred and

Town Clerk.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting
the within-mentioned time for repayment of the within-mentioned principal
sum of is hereby extended to
the day of
nineteen hundred and [and the interest to be paid
thereon on and from the day of
nineteen hundred and is hereby declared to be
at the rate of per centum per annum].

Dated this day of
nineteen hundred and

FORM OF TRANSFER OF MORTGAGE.

I (the within-named) of
in consideration of the sum of pounds paid
to me by of
(hereinafter referred to as "the transferee") do hereby transfer to the trans-
feree (his) executors administrators and assigns (the within-written security)

(the mortgage number _____ of the revenues of the A.D. 1919,
mayor aldermen and burgesses of the borough of West Hartlepool bearing
date the _____ day of _____) and all my right
and interest under the same subject to the several conditions on which I
hold the same at the time of the execution hereof and I the transferee for
myself my executors administrators and assigns do hereby agree to take
the said mortgage security subject to the same conditions.

Dated this _____ day of _____
nineteen hundred and _____

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